



Pensioners Payments Act 1977

1977 CHAPTER 51

An Act to make provision for lump sum payments to pensioners, and for connected purposes.

[24th November 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Any person who—

- (a) is present or ordinarily resident in the United Kingdom or any other member state of the Communities at any time during the relevant week ; and
- (b) is entitled to a payment of a qualifying benefit in respect of a period which includes a day in that week or is to be treated as entitled to a payment of a qualifying benefit in respect of such a period,

Lump sum
payments to
pensioners.

shall, subject to subsection (3) of this section and sections 2 and 3 below, be entitled to payment by the Secretary of State of a sum of £10.

(2) Subject as aforesaid, any person entitled to a payment under subsection (1) above shall, if he and his spouse have attained pensionable age not later than the end of the relevant week and his spouse satisfies the condition mentioned in paragraph (a) of that subsection and if—

- (a) he is entitled in respect of his spouse to an increase in the payment of qualifying benefit mentioned in paragraph (b) of that subsection ; or

1976 c. 71.
1966 c. 28
(N.I.).

- (b) he is to be treated as so entitled and the relevant qualifying benefit is not a supplementary pension ; or
- (c) his and his spouse's requirements and resources fall to be aggregated under paragraph 3(1) of Schedule 1 to the Supplementary Benefits Act 1976 or of Schedule 2 to the Supplementary Benefits &c. Act (Northern Ireland) 1966,

be entitled to payment by the Secretary of State of a further sum of £10.

(3) Only one sum shall be payable under this section in respect of any person.

(4) A sum payable under this section shall not be treated as benefit for the purposes of any enactment or instrument under which entitlement to the relevant qualifying benefit arises or is to be treated as arising.

(5) A payment and the right to receive a payment—

- (a) under this section ; or
- (b) under regulations relating to widows which are, within the period of two months beginning with the date of the passing of this Act, made by the Secretary of State under any enactment relating to police and contain a statement that the regulations provide for payments corresponding to payments under this section,

shall be disregarded for all purposes of income tax and for the purposes of any enactment or instrument under which regard is had to a person's means.

Interpretation.

2.—(1) In this Act “ qualifying benefit ” means—

1975 c. 14.
1975 c. 15.

- (a) any of the following benefits under the Social Security Act 1975 or the Social Security (Northern Ireland) Act 1975 (each of which is hereafter referred to as “ the Social Security Act ”), namely—
 - (i) a retirement pension ;
 - (ii) an invalidity pension ;
 - (iii) a widow's allowance, widowed mother's allowance or widow's pension ;
 - (iv) a non-contributory invalidity pension ;
 - (v) an invalid care allowance ;
 - (vi) an industrial death benefit by way of widow's or widower's pension ;
- (b) an attendance allowance ;
- (c) an unemployment supplement or allowance ;
- (d) a war disablement pension ;

- (e) a war widow's pension ;
- (f) a supplementary pension.

(2) In this Act—

“ attendance allowance ” has the meaning assigned to it by any regulations in force on the passing of this Act under the Family Income Supplements Act 1970 or ^{1970 c. 55.} the Family Income Supplements Act (Northern ^{1971 c. 8 (N.I.).} Ireland) 1971 ;

“ pensionable age ” means—

(a) in the case of a man, the age of 65 ;

(b) in the case of a woman, the age of 60 ;

“ relevant week ” means the week beginning with 5th December 1977 ;

“ retirement pension ” includes graduated retirement benefit, if paid periodically ;

“ supplementary pension ” means a supplementary pension under section 1(1)(a) of the Supplementary Benefits ^{1976 c. 71.} Act 1976 or section 3(1)(a) of the Supplementary ^{1966 c. 28} Benefits &c. Act (Northern Ireland) 1966 ; ^{(N.I.).}

“ unemployability supplement or allowance ” has the meaning assigned to it by Schedule 5 to the Social Security Act ;

“ war disablement pension ” means—

(a) any retired pay, pension or allowance granted in respect of disablement under powers conferred by or under the Ministry of Pensions Act 1916, the Air ^{1916 c. 65.} Force (Constitution) Act 1917, the Personal Injuries ^{1917 c. 51.} (Emergency Provisions) Act 1939, the Pensions ^{1939 c. 82.} (Navy, Army, Air Force and Mercantile Marine) ^{1939 c. 83.} Act 1939, the Polish Resettlement Act 1947, the ^{1947 c. 19.} Home Guard Act 1951 or the Ulster Defence ^{1951 c. 8.} Regiment Act 1969 ; ^{1969 c. 65.}

(b) without prejudice to paragraph (a) of this definition, any retired pay or pension to which subsection (1) of section 365 of the Income and Corpora- ^{1970 c. 10.} tion Taxes Act 1970 applies ;

“ war widow's pension ” means any widow's pension or allowance granted in respect of a death due to service or war injury and payable by virtue of any enactment mentioned in paragraph (a) of the preceding definition or a pension or allowance for a widow granted under any scheme mentioned in subsection (2)(e) of the said section 365 ;

and each of the following expressions, namely, "attendance allowance", "unemployability supplement or allowance", "war disablement pension" and "war widow's pension", includes any payment which the Secretary of State accepts as being analogous to it.

(3) For the purposes of section 1 above the Channel Islands, the Isle of Man and Gibraltar shall be treated as though they were part of the United Kingdom.

(4) A person shall be treated for the purposes of section 1(1)(b) above as entitled to a payment of qualifying benefit if he would be so entitled—

(a) in the case of a qualifying benefit other than a supplementary pension—

(i) but for the fact that he or his spouse is entitled to receive some other payment out of public funds ;

(ii) but for the operation of section 30(1) of the Social Security Act ;

(iii) but for the terms of any arrangement to which section 92 of that Act applies and by which he is bound ;

(iv) but for the fact that he has not made a claim for the payment ;

(b) in the case of a supplementary pension, but for the fact that his or his spouse's earnings were exceptionally of an amount which resulted in his having ceased to be entitled to the pension.

(5) A person shall be treated for the purposes of section 1(2)(b) above as entitled in respect of his spouse to an increase in a payment of qualifying benefit if he would be so entitled—

(a) but for the fact that he or his spouse is entitled to receive some other payment out of public funds ;

(b) but for the operation of any provision of section 30(1), 45(2) or (3) or 66(4) of the Social Security Act or any regulations made under section 66(3) of that Act whereby entitlement to benefit is affected by the amount of a person's earnings in a given period ; or

(c) but for such terms as are mentioned in subsection (4)(a)(iii) above ; or

(d) but for the fact that he has not made a claim for the increase.

(6) For the purposes of section 1 above a person shall be deemed not to be entitled to a payment of a war disablement pension unless not later than the end of the relevant week—

(a) he has attained the age of 70 in the case of a man or 65 in the case of a woman ; or

(b) he is treated under section 27(3) of the Social Security Act as having retired from regular employment.

(7) Two persons who are not married to each other and are living together as husband and wife shall be treated as spouses for the purposes of section 1 above if—

(a) the qualifying benefit to which the man is entitled is a supplementary pension ; and

(b) their requirements and resources fall to be aggregated under the provisions mentioned in subsection (2)(c) of that section.

3.—(1) A determination by the competent authority that a person is entitled or not entitled to payment of a qualifying benefit in respect of a period which includes a day in the relevant week shall be conclusive for the purposes of section 1 above ; and in this subsection “ competent authority ” means, in relation to a payment of any description of qualifying benefit, an authority who ordinarily determines whether a person is entitled to such a payment. Administration.

(2) Any question arising under section 1 or 2 above, other than one determined or falling to be determined under subsection (1) above, shall be determined by the Secretary of State whose decision shall, except as provided by subsection (3) below, be final.

(3) The Secretary of State may reverse a decision under subsection (2) above on new facts being brought to his notice or if he is satisfied that the decision was given in ignorance of, or was based on a mistake as to, some material fact.

(4) The Secretary of State may—

(a) require any person to make a claim in writing for a payment under section 1 above ;

(b) require such information and evidence to be furnished by a person who has applied for a payment under that section as may in the opinion of the Secretary of State be necessary for the purpose of determining whether that person is or was entitled to such a payment.

(5) The Secretary of State may make any payment under section 1 above at any time and in any manner that he thinks appropriate and, in particular, may make such a payment to someone other than the person entitled to it, but on that person's behalf, if in the circumstances of the case he considers it appropriate so to do.

(6) The right of any person to payment of any sum under section 1 above shall be extinguished if payment is not obtained

within twelve months, or such longer period as the Secretary of State may in any particular case allow, from the date which the Secretary of State determines to be the date on which that person became entitled to that payment.

Financial
provisions.

4.—(1) Except as provided by subsection (2) below, there shall be paid out of moneys provided by Parliament—

(a) any sums required for making payments under section 1 above ; and

(b) any administrative costs incurred by any government department in connection with the making of any such payments.

(2) There shall be paid out of moneys appropriated from the Consolidated Fund of Northern Ireland—

(a) any sums required for making payments under section 1 above by virtue of qualifying benefits entitlement to which arises or is treated as arising under any enactment or instrument applying only in Northern Ireland ; and

(b) any administrative costs incurred by any government department in connection with the making of any such payments.

(3) In this section “government department” includes a Northern Ireland department.

Short title
and supplementary
provisions.

5.—(1) This Act may be cited as the Pensioners Payments Act 1977.

(2) This Act shall have effect, in relation to a person who is or is treated as entitled to such a payment as is mentioned in section 4(2) above, as if for any reference to the Secretary of State except in section 1(5)(b) there were substituted a reference to the Department of Health and Social Services for Northern Ireland.

(3) In this Act “enactment” includes an enactment of the Parliament of Northern Ireland or of the Northern Ireland Assembly ; and references to any enactment are, except where the context otherwise requires, references to that enactment as amended by or under any other enactment.